

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2019-005474

BETWEEN:

HERITAGE BREWING COMPANY LTD

Appellant

- and -

TRADITIONAL ALES HOLDINGS PLC

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellant seeks a declaration of invalidity of the Respondent's trade mark registration on grounds of bad faith, prior use and likelihood of confusion with the Appellant's established unregistered mark.

B. RELEVANT FACTS

2. The Appellant has used the mark 'HERITAGE ALE' since 2008 for craft beers sold in the Cotswolds region.
3. The Respondent registered 'HERITAGE ALES' as a trade mark in 2020.
4. The Appellant has built substantial goodwill through farmers' markets, local pubs and regional festivals.
5. The Respondent's directors were aware of the Appellant's use when applying to register.
6. Since registration, the Respondent has demanded the Appellant cease use of its established mark.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
- Trade Marks Act 1994
 - Intellectual Property Act 2014

D. SUBMISSIONS

8. The registration was made in bad faith with knowledge of the Appellant's prior use.

9. The marks are confusingly similar for identical goods.
10. The Appellant has established goodwill in the 'Heritage Ale' name.
11. Use of the registered mark would constitute passing off.

E. AUTHORITIES

12. The following authorities are relied upon:

- Phones 4U Ltd v Phone4u.co.uk Internet Ltd [2006] EWCA Civ 244
- Red Bull GmbH v Sun Mark Ltd [2012] EWHC 1929 (Ch)
- Sky Plc v Skykick UK Ltd [2021] EWCA Civ 1121

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:

- Declaration of invalidity
- Cancellation of registration
- Injunction
- Costs

Sarah Hughes KC

Sarah Clarke

25 May 2021

This is a synthetic document generated for research and training purposes only. It does not represent a real legal case.